

HOUSE No. 5506

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Lawn, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing flexibility for long term care facilities workers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>5/19/2026</i>

HOUSE No. 5506

By Representative Lawn of Watertown, a petition (subject to Joint Rule 12) of John J. Lawn, Jr. for legislation to establish contract and coverage standards for health care worker platforms. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing flexibility for long term care facilities workers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after chapter 112,
2 § 74D the following section:- Section 74DD

3 SECTION 2. As used in this section the following words, shall unless the context clearly
4 requires otherwise, have the following meanings”

5 “Contract,” a written agreement, which may be electronic, between a health care worker
6 and a health care worker platform.

7 “Health care facility” shall mean a long-term care facility, licensed pursuant to Mass.
8 Gen. Laws ch. 111 § 71.

9 “Health care worker” shall mean any health care professional who is licensed, registered
10 or credentialed pursuant to Mass. Gen. Laws ch. 111-112, including, but not limited to,
11 registered nurses, licensed practical nurses, certified nurse aids, nurse aids, and dental hygienists,

and provides health care or directly related health care services to patients at a health care facility, For purposes of this section, doctors, interns, residents and facility management personnel shall not be considered a health care worker.

“Health care worker platform” a business entity that maintains and operates an online-enabled application or platform through which a health care worker can accept one or more shifts to perform health care or directly related health care services to patients at a health care facility.

SECTION 3. A health care worker platform shall:

(a) have a contract with each health care worker that expressly provides that the health care worker platform shall not (i) unilaterally prescribe specific dates, times of day, or minimum numbers of hours that a health care worker must be available to perform health care or directly related health care services to patients, (ii) condition access to its platform on accepting any specific shift or number of shifts, (iii) restrict a health care worker from booking shifts through another platform or pursuing any other lawful business opportunity, (iv) assess a fee or otherwise require compensation from a health care facility or health care worker if such worker accepts an offer of employment or other services engagement from such facility, (v) require a health care worker to use specific equipment, tools, or other supplies, or (vi) prescribe or control the means and methods for the services performed by an individual at a health care facility; (b) maintain general and professional liability insurance providing coverage against third-party claims [by patients] for health care or directly related health care services performed by health care workers during shifts accepted through a health care worker platform; and (c) maintain occupational accident coverage or otherwise verify that health care workers maintain substantially similar coverage applying to health care or directly related health care services performed by health care

workers during shifts accepted through a health care worker platform or verify that health care workers maintain workers' compensation coverage for health care or directly related health care services performed by health care workers during shifts accepted through a health care worker platform.

Notwithstanding any other law to the contrary, a health care worker may choose, in writing, to affiliate with a health care worker platform as an independent contractor. Such affiliation will apply exclusively to the performance of health care or directly related health care services to patients during shifts accepted through the health care worker platform, and shall have no impact on classification in other circumstances.

Nothing in this section shall be construed to affect the collective bargaining rights of any health care worker accepting shifts at a health care facility through a health care worker platform.

SECTION 4. This act shall take effect on December 31, 2026.